

## 25PSCV02609 25PSCV02609

County: los-angeles

Division: Civil Law and Motion

Department: 6

Hearing date: 2026-09-09

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Case Number: 25PSCV02609 Hearing Date: September 9, 2026 Dept: 6

CASE NAME: Golden Heights Investment, LLC v. Laser Land, LLC

Plaintiff Golden Heights Investment, LLC's Motion to Enter Judgment for Possession of the Premises and Money Judgment

### TENTATIVE RULING

The Court GRANTS Plaintiff Golden Heights Investment, LLC's Motion to Enter Judgment for Possession of the Premises and Money Judgment. The dismissal is hereby set aside and vacated. The Court directs Plaintiff to submit a proposed Judgment consistent with the Court's ruling for review and signature.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

### BACKGROUND

This is a commercial unlawful detainer action. On July 16, 2026, plaintiff Golden Heights Investment, LLC (Plaintiff) filed this action against defendant Laser Land, LLC (Defendant) and Does 1 through 30, alleging the sole cause of action for unlawful detainer.

On November 21, 2025, the parties submitted a stipulation for entry of judgment.

On January 20, 2026, the Court dismissed the action without prejudice and with the Court retaining jurisdiction under Code of Civil Procedure section 664.6.

On June 30, 2026, Plaintiff moved to enter judgment for possession of the premises and money judgment. Defendant did not oppose the Motion. At the Court's direction, on August 21, 2026, Plaintiff filed and served an amended motion and supporting documentation. Defendant did not file any opposition.

### LEGAL STANDARD

"If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the

settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6, subd. (a).)

“A party may file a motion or other document pertaining to the settlement, including an application for determination of good faith settlement, a motion for the reduction or determination of a lien, a petition related to the compromise of the claim of a minor or person with a disability, or, if the terms of a settlement are not performed, a motion based upon such terms. Responsive filings and related documents may also be filed.” (Code Civ. Proc., § 664.6, subd. (f)(1).)

## DISCUSSION

Plaintiff seeks for the Court to enter an order vacating the dismissal in this case and entering judgment for possession of the premises. More specifically, Plaintiff seeks: (1) a writ of possession; (2) a judgment in the amount of \$339,377.32, i.e., \$263,261.62 plus accrued rent and interest in the amount of \$321,115.70 through August of 2026 less payments made in the amount totaling \$245,000.00, plus \$1,000.00 for 2 notices of default; (3) a declaration of forfeiture of the lease; and (4) for restitution of the premises. Plaintiff contends the parties entered into a stipulation for entry of judgment (the Stipulation) wherein the parties agreed that the total amount due from Defendant as of the date of the Stipulation was \$263,261.62, that if Defendant defaulted and failed to cure the default within three days’ notice, Plaintiff could obtain a judgment against Defendant in the amount of \$263,261.62 plus unpaid and accrued rental and interest less payments made, for restitution of the premises, for a declaration of forfeiture of the lease, and for the clerk of the Court to issue a writ of possession. Plaintiff contends it gave the agreed upon notice of default on April 3, 2026 and June 11, 2026, after Defendant failed to make payments, that Defendant failed to cure the default, and that Defendant failed to return possession of the premises.

The Court finds Plaintiff’s Motion persuasive. The Stipulation provides for the Court’s continuing jurisdiction under Code of Civil Procedure section 664.6 and the Court’s January 20, 2026 dismissal order indicates it was without prejudice and to retain jurisdiction under section 664.6. (Stipulation (11/21/25), ¶ 17; Order of Dismissal (1/20/26).) The Stipulation expressly provides that the total amount due was \$263,261.62 for past due amounts, plus attorney’s fees and costs and that rent was to accrue at a rate of \$16,274.86 per month base rent plus \$10,339.83 month CAM (subject to adjustment pursuant to the terms of the lease) for a total monthly accruing amount of \$26,614.69. Defendant was to make monthly installment payments totaling \$35,000.00 beginning October 15, 2025 and continuing thereafter on or before the 1st of each month starting November 1, 2026. The Stipulation further provided that the payments would be applied first to the past due balance, and then to the accrued rent and CAM, and that if Defendant failed to cure any default within 3 days, Plaintiff could obtain entry of judgment against Defendant for possession of the subject property and in the amount of \$236,261.62, plus any unpaid and accrued rental due, less any payments received, plus agreed cost to prepare notice of default, court costs and attorney’s fees.. (Stipulation (11/21/25), ¶¶ 1-14; Creditors Adjustment Bureau, Inc. v. Imani (2022) 82 Cal.App.5th 131, 135 [stipulation for entry of judgment on full amount not a penalty where defendant acknowledged the full amount due].)

Plaintiff’s evidence shows that Defendant failed to make all the required payments. (Israelsky Decl., ¶¶ 5-16.) Plaintiff’s evidence also shows that Plaintiff gave 2 notices of default to Defendant and contends that Defendant failed to cure the default within the three-day time period provided in the Stipulation. (Stipulation (11/21/25), ¶ 12; Weinberg Decl., ¶¶ 8-11, Exs. B-C.) Plaintiff provided sufficient evidence of the Stipulated amount due for past due amounts, plus attorney’s fees and costs, and the accruing monthly base rent plus monthly CAM charges through August 2026, as well as the total payments made by Defendant. Defendant did not oppose the motion and therefore concedes its merits. (D.I. Chadbourne, Inc. v. Superior Court (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, “it is assumed that [nonmoving party] concedes” that ground].) Plaintiff is therefore entitled to entry of judgment under Code of Civil Procedure section 664.6.

Based on the foregoing, the Court GRANTS the motion. The dismissal is hereby set aside and vacated. The Court will enter judgment in favor of Plaintiff and against Defendant for possession of the subject premises and in the amount of \$339,377.32, plus attorney’s fees and costs sought separately.

## CONCLUSION

The Court GRANTS Plaintiff Golden Heights Investment, LLC's Motion to Enter Judgment for Possession of the Premises and Money Judgment. The dismissal is hereby set aside and vacated. The Court directs Plaintiff to submit a proposed Judgment consistent with the Court's ruling for review and signature.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.